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Case Number: 25NNCV05274 Hearing Date: August 7, 2026 Dept: T

Huiling Lin vs.

Kent Chen

(1)

Demurrer to Plaintiff's First Amended Complaint; (2) Motion to Strike Portions of Plaintiff's Complaint

Moving Party: Defendant

Kent Chen

Responding Party: Plaintiff

Huiling Lin

Tentative Ruling: (1) Sustain; (2) Grant

BACKGROUND

On

April 7, 2026, Plaintiff Huiling

Lin ("Plaintiff")

filed a first amended complaint ("FAC") against Defendants Kent Chen, Camille

Pingol, and Does 2 to 100,

alleging the following causes of action: (1) strict liability (California Civil Code § 3342); (2) negligence; (3) negligent infliction of emotional distress ("NIED"); and (4) premises liability.

This action arises out of an alleged dogbite incident on or about

December 30, 2023.

Defendant now concurrently demurs to the first cause of action and moves to strike the third cause of action.

Plaintiff opposes, and Defendant replies.

MOVING

PARTY POSITION

A. Demurrer

Defendant

argues that Plaintiff fails to state facts sufficient to constitute a cause of action for strict liability against Defendant, as Defendant did not own the subject dog who attacked and injured Plaintiff.

B. Motion to Strike

Defendant argues that the third cause of action for NIED is improperly brought by Plaintiff, as Plaintiff is seeking to recover under a direct victim theory that is unavailable under California law based on the alleged factual circumstances in this action.

OPPOSITION

A. Demurrer

Plaintiff

contends that the strict liability cause of action is supported by sufficient facts, as Plaintiff alleges that Defendant possess, controlled, kept, and harbored the subject dog at the time of the dogbite incident.

B. Motion to Strike

Plaintiff contends that the motion to strike should be denied, as Defendant's cited authority supports treating the NIED claim as part of her negligence claim rather than striking it outright.

REPLY

A. Demurrer

Defendant

responds that, because Plaintiff only bases her claim on Civil Code section 3342, and as statutory strict liability for dogbite incidents only extends to dog owners, the cause of action is subject to demurrer as against Defendant.

B. Motion to Strike

Defendant responds that the NIED claim should be stricken as there is no independent tort of NIED, as Plaintiff concedes.

ANALYSIS

I. Legal Standard

A. Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc. §§ 422.10, 589; see, also, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Donabedian*, supra, 116 Cal.App.4th at p. 994.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) "All that is required of a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action." (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822 [quoting Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616].) Demurrers “for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn. 3, internal quotations omitted; accord Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant’s knowledge.” (Chen, supra, 33 Cal.App.5th at p. 822.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Motion to Strike

California law authorizes a party’s motion to strike matter from an opposing party’s pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436(a).) Motions may also target pleadings or parts of pleadings which are not filed or drawn in conformity with applicable laws, rules or orders. (Code Civ. Proc. § 436(b).) A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see, also, City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 [motion may not be based on a party’s declaration or factual representations made by counsel in the motion papers].) In particular, a motion to strike can be used

to attack the entire pleading or any part thereof—in other words, a motion to strike may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.)

The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter “at any time in its discretion, and upon terms it deems proper.” (Code Civ. Proc. § 436.)

II. Meet and Confer

Per the declaration of Defendant’s counsel Jaqueline I. Izurieta, counsel for the parties met and conferred by telephone to discuss the issues underlying both the instant demurrer and motion to strike and were unable to reach a resolution as to the issues underlying this demurrer and motion. (Izurieta Decl. ¶¶ 7–9.)

III. Discussion

A. Demurrer

Civil Code section 3342(a) provides in relevant part as follows: “The owner of any dog is liable for the damages suffered by any person who is bitten by the dog while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner’s knowledge of such viciousness.” Accordingly, as Plaintiff alleges strict liability under Section 3342(a), any claim under this section must be brought against the owner of the subject dog.

Here, Plaintiff generally alleges that, “[a]t all relevant times, Defendants CHEN, PINGOL, and DOES 2 through 100, and each of them, were the owners, keepers, harborers, and/or controllers of a dog (the “Dog”).” (FAC ¶ 11.) Plaintiff also specifically alleges the following fact in support of the strict liability cause of action: “At all times mentioned herein, Defendant PINGOL, and DOES 2 through 100, and each of

them, were the owners of the Dog, and Defendant CHEN, and DOES 2 through 100, and each of them, were the keepers, harborers, and/or persons in possession and control of the Dog, which caused the injuries and damages complained of by Plaintiff.” (Id. ¶ 17.) “Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that add details or explanatory facts, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation.” (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1235–1236.) As the general fact of Defendant’s ownership of the subject dog must give way to the specifically alleged fact of Defendant’s mere possession and control of the subject dog, Plaintiff fails to state facts sufficient to constitute a statutory strict liability cause of action against Defendant under Section 3342(a). (Id. at p. 1236 [“Under this principle, it is possible that specific allegations will render a complaint defective when the general allegations, standing alone, might have been sufficient.”].)

Thus, as there exists no reasonable possibility of stating a good cause of action without creating a sham pleading, the demurrer to the first cause of action is sustained without leave to amend.

B.

Motion to
Strike

Defendant seeks to strike Plaintiff’s
third cause of action for NIED.

California law recognizes NIED not as an independent tort but as a form of negligence, and recovery is typically available under either a bystander or direct victim theory of liability. (See Spates v. Dameron Hosp. Assn. (2003) 114 Cal.App.4th 208, 213.)

As Plaintiff alleges a negligence cause of action against Defendant, and as NIED is not an independent tort, the Court grants the motion to strike this cause of action. In so ruling, the Court makes no determination at this time as to whether emotional distress damages are

recoverable against Defendant under the remaining negligence cause of action based on a direct victim theory of NIED liability.

RULING

Defendant

Kent Chen's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED as to the first cause of action without leave to amend.

Defendant

Kent Chen's Motion to Strike Portions of Plaintiff's First Amended Complaint is GRANTED as to the third cause of action.